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|   |                                                           | <p>The Court denies the Plaintiff's request to shorten the time as to the Motion for Discovery Sanctions. A party filing an ex parte application is seeking emergency relief. (Cal. Rules of Court, rule 3.1201(2) and 3.1202(c)). The standard is high. A party must face "irreparable harm" or "immediate danger" if relief is not granted. (Cal. Rules of Court, Rule 3.1202(c)). The Application must be accompanied by a declaration containing "affirmative factual showing" consisting of irreparable harm, immediate danger, or any other statutory basis for granting ex parte relief. (Cal. Rules of Court, Rule 3.1202(c).) Plaintiff failed to meet the high standard of irreparable harm or immediate danger as to this issue.</p> <p>The Court orders Defendant Krista Johnson to produce, no later than 3 pm on June 15, 2026, any and all text messages, emails, and communications between herself and Magic Snake Pro, Inc., or its personnel/staff, and any other mold or plumbing company Ms. Johnson hired.</p> <p>The Plaintiff is ordered to provide notice of the Court's ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 6 | 30-2026-01561663<br>FC Orange Associates<br>LP vs. Borden | <p>The Court has read and considered the Defendant's Motion to Compel Further Responses to Form Interrogatories (ROA 63), Motion to Compel Further Responses to Special Interrogatories (ROA 66), Motion to Compel Production/Inspection of Documents or Things (ROA 69), the Plaintiff's Oppositions to Each of the Defendant's Motions (ROA 78, 80 &amp; 82) and the Defendant's Replies to the Plaintiff's Oppositions (ROA 90, 92, &amp; 94).</p> <p>The Court takes Judicial Notice of the Request to Set Case for Trial (ROA 26), filed 5/8/2026; the Demand for Jury Trial (ROA 35), filed 5/11/2026; the Substitution of Attorney (ROA 32/33), filed 5/11/2026; the Clerk's Certificate of Mailing/Electronic Service (ROA 29); the Clerk's Certificate of Mailing/Electronic Service (ROA 59); and the 5/22/2026 Minute Order.</p> <p>Here, the Plaintiff filed a Request to Court the Case for Court trial on 5/8/2026. On 5/11/2026, Asian Americans Advancing Justice Southern California filed a substitution of attorney for the Defendants and filed a timely demand for a jury trial. On 5/12/2026, the Court Clerk's office mistakenly set the matter for a Court Trial and failed to provide notice to Asian Americans Advancing Justice Southern California, sending notice only to the Defendants personally. On May 22, 2026, this Court noticed the error made by the Clerk's Office in setting the matter for a Court Trial when there was a timely demand for a jury trial, so in Chambers the Court issued the Minute Order of 5/22/2026 (ROA 58) vacating the court trial of 5/26/2026 and setting a pretrial conference for 6/12/2026 and a jury trial for 6/15/2026. On May 22, 2026, the C61 Clerk notified the attorneys of the parties via email of the 5/22/2026 Minute Order. The initial trial date for this matter is June 15, 2026. There were no continuances or postponements filed, but a clerical error in the Court Clerk's office of failing to review the Court Docket, which showed that there was a demand for a jury trial, and failing to notify the attorney of record properly.</p> <p>As such, the Court is ordering that the discovery request made by the Defendant's Counsel was timely. It is understandable that Plaintiff's counsel may have been confused by the error created by the first issuing of the court</p> |

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|    |                                                                   | <p>trial notice by the clerk's office. Considering these facts, the Court will order the Plaintiff's counsel to respond to the discovery request within 5 days. The Court will not issue sanctions against the Plaintiff. Counsel for both parties are ordered to meet and confer prior to the pretrial date.</p> <p>Given the amount of time for this motion and the need for discovery responses, the Court will advance and vacate the currently set pretrial and jury trial date and reset the pretrial hearing for June 26, 2026, at 8:30 AM in Department C61 and Jury Trial for June 29, 2026, at 8:30 AM in Department C61.</p> <p>The Court has read and considered the Defendant's Motion for Leave to Amend First Amended Answer (ROA 72). No opposition was filed by the Plaintiff. The Court grants the Defendant's Leave to Amend First Amended Answer.</p>                                                                                                                                                                                                              |
| 11 | 30-2026-01569971<br>CJS Pinemeadows Apartments, L.P. vs. Gonzales | <p>The Court has read and considered the Defendants' Motion to Strike Complaint (ROA 32), the Complaint (ROA 2) and Plaintiff's Opposition (ROA 39) .</p> <p>The Court takes Judicial Notice of the Proof of Service of Summons (ROA 8, 10 &amp; 14).</p> <p>The Court DENIES the Motion to Strike Complaint.</p> <p>California Code of Civil Procedure §435(b)(1) requires a motion to strike to be filed within the 10 business days of service of the summons and complaint. Under California Code of Civil Procedure §1014, a motion to strike is an appearance with the court; the Defendants are precluded from filing a motion to quash service following the filing of a Motion to Strike. Furthermore, California Code of Civil Procedure §435(d) does not extend time to file a demurrer. Therefore, because it has been well past the 10 business days following service of the Summons and Complaint on May 18 &amp; 19, 2026, the Defendants are ordered to file an Answer within 5 calendar days.</p> <p>Plaintiff is ordered to serve notice of the Court's ruling.</p> |
| 12 | 30-2026-01565351<br>Regency Palms, LP vs. Riccobono               | <p>The Court has read and considered Plaintiff's Motion to Deem the Truth of the Matters Specified in Plaintiff's Request for Admission, Set No. (1), Admitted and Conclusively Established (ROA 30).</p> <p>IT IS ORDERED that the Plaintiff's Motion to Deem the Truth of the Matters Specified in Plaintiff's Request for Admission, Set No. (1), Admitted and Conclusively Established is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Plaintiff and served on Defendant Donna Riccobono on May 21, 2026, be deemed admitted.</p> <p>The Court orders the Defendant, Donna Riccobono, forthwith to pay a sanction in the amount of \$176.58 to Plaintiff's Counsel. Given the Defendant's court-approved fee waiver information and the Defendant's disability status, in the interest of justice and equity, the Court will not impose</p>                                                                                                                      |